Submission by the National Commission on Women to the Select Committee of Parliament appointed to review the laws relating to Elections (Excluding Provincial Council Elections)

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Electoral Reforms to Increase Women's Representation in Parliament

Rationale

Women comprise more than 52 per cent of Sri Lanka's population and over half of the electorate, yet they remain significantly underrepresented in Parliament. Following the November 2024 General Election, Sri Lanka elected 22 women to its 225-member Parliament, bringing female representation to 9.7%[1] as per the Election Commission. While this marks the highest level in the country's history and a 4.5% improvement from 2020 (when it stood at roughly 5.3%), it remains well below regional and global averages[2].

Reflecting this modest progress, Sri Lanka's position in the Inter-Parliament Union (IPU) global ranking for women's representation in national parliaments improved from 179th place following the 2020 election to 165th place after the 2024 November election. Despite this advancement, Sri Lanka remains among the lowest-ranked countries globally in terms of women's parliamentary representation. This underscores the urgent need for sustained electoral and institutional reforms to ensure women's equal and meaningful participation in political decision-making[3].

A parliament that reflects the diversity of its people is essential for a healthy democracy. When women participate equally and meaningfully in political decision-making, legislatures are more likely to address issues such as healthcare, education, child and elder care, sexual and gender-based violence, social protection, labour rights, climate change, and economic opportunities. Increasing women's representation is therefore

[1] https://elections.gov.lk/en/all_inclusive_election/all_inclusive_women_representation_E.html

[2] https://srilanka.unfpa.org/sites/default/files/pub-pdf/2025-08/BARRIERS%20TO%20WOMEN%E2%80%99S%20POLITICAL%20PARTICIPATION%20IN%20SRI%20LANKA%20A%20literature%20review%20%20report_01_FINAL.pdf

[3] https://data.ipu.org/parliament/LK/LK-LC01/election/LK-LC01-E20241114/

not only a women's rights issue but a democratic and governance imperative. As emphasized in the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) framework, achieving this substantive equality requires the use of temporary special measures.[4]

Although in 2017 Sri Lanka introduced a minimum mandatory 25% quota for women in Local Government, no similar measure currently exists for Parliamentary elections. As a result, women continue to face structural barriers in securing nominations, competing within political parties and being elected to Parliament.

Sri Lanka's Parliamentary Electoral System

Sri Lanka elects Members of Parliament through an open-list proportional representation system.
The 225 seats are filled through two levels:

- 196 Members are elected from 22 multi-member electoral districts.
- 29 Members are appointed through the National List, based on each political party's share of the national vote.

Under the current system, voters cast one vote for a political party or independent group and may indicate up to three preferential votes for candidates from that same party list. Because the existing electoral system already operates through district candidate lists and a National List, reforms to improve women's representation can be introduced without changing the Constitution. Most changes would require amendments to the Parliament Elections Act, No. 1 of 1981.

Proposed Reforms

This proposal seeks to increase women's representation while preserving Sri Lanka's current electoral system.

1. District-Level Elections

(a) Political parties should nominate at least one-third women candidates.
Every political party should be legally required to ensure that at least one-third of its candidates in every electoral district are women. For example, if a district has 12 parliamentary seats, each political party should nominate at least five women candidates, as such a list will have 15 candidates.
This ensures that voters have a meaningful choice of women candidates.

[4] UN Committee on the Elimination of Discrimination Against Women (CEDAW), *General Recommendation No. 25: Article 4, Paragraph 1, of the Convention (Temporary Special Measures)* (2004).

(b) Reform the preferential voting system.
To encourage the election of both women and men, voters should be required to cast preferential votes for candidates of both sexes.
The ballot paper should therefore provide separate sections for female and male candidates.

A voter would:

- cast one vote for a political party; and
- indicate at least one preferential vote for a female candidate and one preferential vote for a male candidate.
- If a voter chooses to use all three preferential votes, at least one preference must be given to each sex.
- If a voter cast all three votes to the same sex, his/her first two preferences should be counted and the third should be rejected. (the ballot paper should indicate preferences as 1,2,3)

This approach maintains voter choice while encouraging more balanced electoral outcomes.

2. National List

The National List provides an immediate opportunity to improve women's representation.
Political parties should therefore be required to:

- nominate equal numbers of women and men (50:50);
- submit a final National List before the election with no provisions for making any additions or adjustments to the list after it is submitted to the Election Commission;
- arrange candidates using a closed "zipper" list, alternating between male and female candidates, in order of priority. This requirement prevents parties from indulging in undemocratic practices such as relegating a higher percentage of female candidates to the bottom of the list, thereby placing many of them in unwinnable positions.

This would ensure that women have an equal opportunity to enter Parliament through the National List.

All appointments from the National List and PR lists must be made strictly according to this predetermined order of priority, and no appointments outside the published list or out of sequence should be permitted.

3. Filling Vacancies

Where a woman Member of Parliament elected or appointed under these quota provisions vacates her seat, the vacancy should be filled by another eligible woman from the same political party.

This prevents the gradual erosion of women's representation during the life of Parliament.

4. Legislative Changes Required

The proposed reforms can largely be implemented by amending the Parliament Elections Act, No. 1 of 1981.

Key amendments would include:

- nomination requirements for political parties;
- the format of nomination papers;
- the design of the ballot paper;
- the rules governing preferential voting;
- National List nomination procedures; and
- replacement procedures when vacancies arise.

Since these proposals work within the existing proportional representation system, they do not require constitutional amendments.

5. Expected Impact of Quotas

These reforms would substantially increase the number of women elected to Parliament while preserving voter choice and the current electoral framework.

Based on the existing composition of Parliament:

Tier	**No. of MPs**	**Quota size**	**Theoretical numerical outcome***
Districts	196	1/3	65.33
National list	29	50%	14.50
Total	**225**	**35.48%**	79.83

*Actual outcomes may exceed these figures because voters would continue to choose individual candidates through the preferential voting system.

6. Practical Considerations

Several factors may affect the final number of women elected.

- Some electoral districts have seat allocations that cannot be evenly divided into one-third.
- The law will need to specify how quotas should be rounded where fractions arise.
- Political parties must implement the National List requirements as mandatory, particularly the zipper arrangement.
- Public awareness campaigns by the Election Commission, political parties and civil society will be important to help voters understand the revised ballot paper and reduce invalid votes.

7. Conclusion

Sri Lanka has already recognised the importance of temporary special measures through the introduction of quotas at the Local Authority Level. Extending similar measures to Parliamentary elections is a logical next step towards strengthening representative democracy. The reforms proposed here build on the existing electoral system, require only limited legislative amendments and provide a practical pathway towards significantly increasing women's representation in Parliament. They are designed not to replace voter choice, but to ensure that women have a fair and equal opportunity to be nominated, elected and participate meaningfully in national decision-making.

Recommendations for Legal Amendments to Promote Women's Participation in Local Government Authorities

Rationale

The 25% women's quota was operationalised through the Local Authorities Elections (Amendment) Act, No. 16 of 2017 and it was first implemented at the Local Government Elections held on 10 February 2018, resulting in the election of nearly 2,000 women**,** increasing women's representation in local authorities from less than 2% to 22.8%[5] as per data from the Election Commission. The quota has now been implemented through two local government election cycles, creating an unprecedented cohort of women elected to local government.

Nevertheless, this important numerical gain has not translated much into substantive influence or leadership within local governance institutions. The experience of women elected to local authorities over the past two terms demonstrates that the introduction of quotas alone is insufficient to ensure meaningful political participation. While the quota has successfully increased the numerical representation of women, further reforms to the local government legal framework are needed to enable women councillors to participate fully and effectively in decision-making. Such reforms should ensure that women have equal access to leadership positions, adequate institutional support, resources, and a safe and dignified working environment. Only then can the increased representation of women translate into local governance that better reflects the needs and priorities of the more than half of Sri Lanka's population who are women.

1. Proposal to Increase Women's Elected Representation in Local Authorities

It is also time to increase the minimum mandatory quota for women elected to local authorities. Under the current mixed-member electoral

[5] See Election Commission of Sri Lanka website for more details: https://elections.gov.lk/en/all_inclusive_election/all_inclusive_women_representation_E.html

system, approximately 60 per cent of members are elected through the First-Past-the-Post (FPP) system and 40 per cent through Proportional Representation (PR). Rather than allocating a separate 25 per cent quota, the law requires political parties to nominate women for at least 10 per cent of FPP seats and ensure that 50 per cent of candidates on the PR lists are women, with the seat allocation formula designed to ensure that not less than 25 per cent of the total membership of each local authority consists of women.

The experience of both the 2018 and 2025 local government elections demonstrates that the FPP nomination requirement has directly translated into women being elected. Accordingly, the minimum requirement for women candidates in the FPP component should be increased from 10 per cent to 20 per cent, while retaining the existing requirement that 50 per cent of candidates on the PR lists be women. This reform would increase the proportion of women directly elected through the FPP component from approximately 6 per cent to 12 per cent of total council seats. Combined with the existing 20 per cent elected through the PR component, women's overall representation in local authorities could increase from approximately 26 per cent to around 32 per cent, thereby strengthening women's participation and leadership in local governance.

Proposed Reform of Women's Representation in Local Authorities

Electoral Component	**Current Legal Requirement**	**Approximate Women Elected (Current)**	**Proposed Reform**	**Approximate Women Elected (Proposed)**
First-Past-the-Post (60% of seats)	Minimum 10% women candidates	6% of total council seats	Increase to 20% women candidates	12% of total council seats
Proportional Representation (40% of seats)	50% women candidates on PR lists	20% of total council seats	No change (50%)	20% of total council seats
Total Women in Local Authorities	Minimum 25% women overall	Approximately 26%	Approximately 32%	+6 percentage point increase

2. Political Party Structural Reform

The Parliamentary Elections Act No. 1 of 1981 is the principal legislation governing parliamentary elections and the participation of recognized political parties in the electoral process. However, it does not regulate the internal governance of political parties or require democratic, transparent, and gender-responsive processes for leadership or candidate selection.

Consequently, there is no legal framework requiring political parties to adopt measures that promote women's equal participation in party decision-making or leadership. This remains one of the key challenges identified by many women elected through the Local Authority quota system, limiting their opportunities to participate meaningfully and progress within party structures.

> **Recommendation:** Political parties should be legally required to adopt gender-responsive internal governance mechanisms. This should include mandatory gender-responsive codes of conduct applicable to all party members and elected representatives, with effective procedures for addressing violations.
>
> In addition, at least 33 per cent of positions in all party leadership and decision-making bodies should be reserved for women. Compliance with these requirements should be made a condition for registration of new parties and continued recognition of political parties. Election commission should be mandated to monitor this.

3. Reform of Laws Governing Local Authorities: Key Issues and Recommendations

The existing legal framework governing local authorities, the Municipal Councils Ordinance, the Urban Councils Ordinance, and the Pradeshiya Sabhas Act, No. 15 of 1987, does not adequately promote gender equality or ensure the meaningful participation of women in local governance. Consequently, women elected to local authorities continue to face structural barriers within a predominantly male political environment.

The National Commission on Women therefore recommends amending these laws to embed gender equality as a guiding principle of local government and to introduce measures that support the full and effective participation of women in local authority decision-making.

The following are the key issues identified and the corresponding recommendations for amendments to the relevant provisions of these laws.

1. **Absence of a Gender Equality Framework**: The Municipal Councils Ordinance, the Urban Councils Ordinance, and the Pradeshiya Sabhas Act, No. 15 of 1987 do not recognize gender equality as a guiding principle of local governance or impose a legal obligation on local authorities to promote the equal participation of women.

   > **Recommendation:** Amend all three laws to expressly recognize gender equality as a fundamental principle of local government and establish a statutory duty on every local authority to promote and uphold gender equality in its structures, processes, and decision-making.

2. **Limited Representation of Women in Executive Leadership**: The current legal framework does not provide safeguards to ensure equitable representation of women in leadership positions such as Mayor, Deputy Mayor, Chairman, and Vice-Chairman, resulting in continued gender imbalance and discrimination.

   Recommendation: Amend Section 14 of the Municipal Councils Ordinance**,** Section 19 of the Urban Councils Ordinance, and Section 8 of the Pradeshiya Sabhas Act to introduce a statutory mechanism that ensures the equitable allocation of leadership and deputy leadership positions. Where the Mayor or Chairperson is a man, the Deputy Mayor or Vice-Chairperson should be a woman, and vice versa. Alternatively, to avoid women being confined to deputy leadership roles throughout the term, the law should require the sharing of leadership positions during the term of office. For example, in a four-year term, a man may serve as Mayor or Chairperson for the first two years, followed by a woman serving as Mayor or Chairperson for the remaining two years, or vice versa.

3. **Inadequate Representation of Women in Standing Committees and Sub-Committees**: None of the three principal local government laws contain provisions requiring women's representation in Standing Committees or Sub-Committees.

   Recommendation: Introduce by-laws requiring a minimum of 25 per cent women members in all Standing Committees and Sub-Committees and reserve at least 25 per cent of committee chairperson positions for women.

4. **Violence and Harassment Against Women Members**: Existing local government laws contain no provisions to prevent or address verbal, physical, psychological, or other forms of violence and harassment against women members, including being denied opportunities to speak, having proposals dismissed, or being excluded from official records[6].

   Recommendation: Introduce a mandatory Code of Conduct and supporting by-laws prohibiting all forms of violence and harassment against women members, including digital harassment and violence, together with an independent complaint mechanism, investigation procedures, and appropriate disciplinary measures.

5. **Failure to Properly Record Women's Contributions**: Inadequate record-keeping of council and committee proceedings often results in

[6] International Foundation for Electoral Systems. (2022). Women's Political Representation in Sri Lanka: Electoral System Analysis and Recommendations. Available online at https://www.ifes.org/publications/womens-political-representation-sri-lanka-electoral-system-analysis-and.

proposals and contributions made by women members being overlooked or omitted from official records.

Recommendation: Strengthen Section 25 of the Municipal Councils Ordinance; Section 28 of the Urban Councils Ordinance; Section 15 of the Pradeshiya Sabhas Act by requiring comprehensive and accurate recording of all council and committee deliberations to ensure transparency and accountability.

6. **Limited Institutional Support for Women Members**: Local authorities lack adequate legal and institutional mechanisms to support newly elected women members, including capacity development, access to essential resources, legal assistance, counselling, and financial support. There are also no effective mechanisms to prevent, report, investigate, and take disciplinary action against sexual harassment or other forms of intimidation within local authorities. These gaps limit women's effective participation, undermine their safety and dignity, and discourage them from seeking redress.

   Recommendation: Amend the Local Government Acts and relevant by-laws to provide dedicated funding for the training and capacity development of council members, ensure women members have access to the resources and support needed to perform their duties, establish legal and counselling support services at the provincial or district level, and introduce clear procedures to prevent and address sexual harassment and other forms of gender-based harassment, including complaints and disciplinary action.

7. **Lack of Welfare Facilities**: Existing legislation does not require local authorities to provide essential facilities such as childcare services, gender-sensitive sanitation facilities, or infrastructure supporting pregnant and nursing mothers.

   Recommendation: Amend the law to make the provision of these welfare facilities a mandatory responsibility of every local authority.

8. **Inadequate Representation of Marginalized Women**: The current legal framework contains no provisions to ensure the representation of women from marginalized groups, including women with disabilities, transwomen and indigenous women.

   Recommendation: Introduce specific legal provisions requiring equitable representation of marginalized women within local government institutions and decision-making processes.

9. **Limited Public Awareness and Transparency:** There is inadequate public awareness of the roles and contributions of women members of Local Government Authorities. The lack of statutory requirements for transparency and public communication has enabled misinformation

and negative narratives, while existing by-laws do not adequately provide for public access to information, participation, or civic education.

Recommendation: Amend the by-laws governing Local Government Authority meetings to require the public dissemination of meeting information and decisions, establish accessible Public Galleries, and assign Local Government Authorities a statutory responsibility to promote civic education and public awareness of local governance, including the role and contributions of women representatives.

Introducing Advance and Absentee Voting to Strengthen Women's Electoral Participation

Rationale

Sri Lanka has consistently recorded one of the highest voter turnout rates in Asia, with the average voter turnout across four most recent parliamentary elections (2010 to 2024) being approximately 70%**.** The 2024 Presidential Election, for example, recorded a turnout of approximately 79%, reflecting the strong commitment of Sri Lankan citizens to democratic participation. The right to vote is a fundamental democratic right guaranteed under the Constitution of Sri Lanka. However, many eligible voters continue to face practical obstacles that prevent them from voting on election day. These barriers disproportionately affect women because they are more likely to work in sectors where obtaining leave is difficult, have irregular working hours, bear caregiving responsibilities, and engage in overseas employment.

Women constitute a significant proportion of Sri Lanka's workforce in the apparel industry, retail and commercial establishments, healthcare services, domestic work, and overseas employment, particularly in the Middle East. Thousands of women employed in supermarkets, shopping centres, factories, hospitals, hotels, and other essential services are often unable to leave their workplaces to vote. Many women also carry primary responsibility for childcare, disability and elder care and household work, making travel to polling stations difficult, particularly where long distances or lengthy queues are involved. As a result, many women who are legally entitled to vote are effectively unable to exercise that right. Similarly, a large number of Sri Lankan women employed overseas remain registered voters but are unable to participate in elections because the current legal framework does not permit overseas or absentee voting.

Introducing an absentee or advance voting system would therefore significantly widen women's electoral participation by reducing these practical barriers and ensuring that employment or location does not prevent women from exercising their franchise.

At present, the Presidential Election Act No. 15 of 1981 and the Parliamentary Elections Act No. 1 of 1981, Provincial Councils Elections Act, No. 2 of 1988 and Local Authorities Elections Ordinance and its amendments provides postal voting only for specified categories of public officials performing election-related duties and certain public servants. It does not provide alternative voting arrangements for the vast majority of citizens who are unable to attend their designated polling station due to employment, official duties, temporary absence from their electoral district, or overseas work commitments. Expanding the law to introduce absentee or advance voting would make Sri Lanka's electoral process more inclusive while safeguarding the principle of universal adult franchise.

Such a reform would not only improve access to voting but also advance substantive equality in political participation. It would align with Sri Lanka's constitutional commitment to universal franchise and equality before the law, while giving effect to the country's international obligations under CEDAW and ICCPR, both of which require the State to ensure equal opportunities for women and men to participate fully in public and political life.

Proposed Reform

The Presidential, Parliament and Provincial Councils Elections Acts and the Local Authorities Elections Ordinance should be amended to introduce advance or absentee voting for eligible categories of voters who are unable to vote at their assigned polling station on election day due to employment, official duties or other legally recognised circumstances.

The system could include:

- advance in-person voting during a designated period before election day;
- absentee voting at specially designated polling centres;
- secure voting arrangements for Sri Lankan migrant workers overseas through Sri Lankan diplomatic missions, and
- clearly defined eligibility criteria and verification procedures to maintain electoral integrity.

Benefits

Introducing advance or absentee voting would:

- increase overall voter participation;
- improve women's electoral participation by removing practical barriers to voting;
- ensure that workers in essential services are not forced to choose between earning an income and exercising their democratic rights;

- reduce inequality between public sector employees, who currently benefit from special voting arrangements in some circumstances, and private sector employees;
- strengthen the legitimacy and inclusiveness of elections; and
- align Sri Lanka with international good practices that facilitate voting for citizens who cannot attend polling stations on election day.

Additional Legislative Protection

The law should also strengthen protections for workers by:

- requiring employers to provide reasonable paid time off to vote on election day where absentee voting is not available;
- prohibiting discrimination or penalties against employees who exercise their right to vote; and
- establishing penalties for employers who intentionally obstruct or discourage employees from voting.

Conclusion

Introducing absentee or advance voting would not only enable more eligible voters to cast their ballots despite employment or other unavoidable commitments but also would encourage greater voter registration by assuring citizens that they can effectively exercise their right to vote. By removing practical barriers to participation, absentee or advance voting would strengthen electoral inclusion, enhance democratic participation, and further deepen Sri Lanka's democracy. Although women legally enjoy equal voting rights, structural, employment-related and other practical barriers continue to prevent many women from exercising these rights in practice. Sri Lanka should therefore expand its existing postal voting framework into a broader absentee or advance voting system for clearly defined categories of voters, including overseas migrant workers, private-sector employees in essential and continuous services, persons with disabilities, pregnant, lactating and caregiving women, and others who can demonstrate that they are unable to attend their designated polling station on election day. Such a system should complement the existing polling day voting process, thereby preserving electoral integrity while expanding access to the franchise. The reform should be implemented consistently across the Parliamentary Elections Act, No. 1 of 1981, the Presidential Elections Act, No. 15 of 1981, the Provincial Councils Elections Act, No. 2 of 1988, and the Local Authorities Elections Ordinance. By modernising Sri Lanka's electoral framework in this manner, absentee voting would increase voter participation, promote women's equal access to the electoral process, and strengthen the country's inclusive and participatory democracy.

References:

1. *Election Commission of Sri Lanka. Official Election Results – Presidential Election 2024 (national voter turnout approximately 79%).*
2. *Department of Census and Statistics. Sri Lanka Labour Force Survey – Annual Report 2024. (Provides labour force participation by sex and sector, including retail, manufacturing, healthcare and services.)*
3. *Sri Lanka Bureau of Foreign Employment. Annual Statistical Report 2024. (Provides data on overseas migrant workers, including the large proportion of women employed in domestic and care work in the Middle East.)*
4. *United Nations Committee on the Elimination of Discrimination against Women. Convention on the Elimination of All Forms of Discrimination against Women, Articles 7 and 8.*
5. *United Nations. International Covenant on Civil and Political Rights, Article 25.*
6. *Constitution of the Democratic Socialist Republic of Sri Lanka, Article 4(e) (exercise of the franchise) and Article 12 (equality before the law)*
7. *The Constitution of the Democratic Socialist Republic of Sri Lanka (1978) and Election Laws mainly the Parliamentary Elections Act, No. 1 of 1981, the Presidential Elections Act, No. 15 of 1981, the Provincial Councils Elections Act, No. 2 of 1988, and the Local Authorities Elections Ordinances and Acts and amendments.*